International Law
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State Responsibility

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State Responsibility

OVERVIEW

Part 1

1. Constituent elements for state responsibility
   a. wrongful conduct
   b. state attribution

Part 2

2. Grounds to preclude wrongfulness.
3. Consequences of the breach (**cessation** & **reparation**).
4. Who may invoke a state's international responsibility (**injured states** & **non-injured states**).

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State Responsibility (part 1)



State Responsibility - INTRO

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Rules of 'state responsibility' indicate

- Circumstances in which a state's responsibility for the violation of an international obligation is triggered and
- The consequences this entails, including how other states may respond to this.

Rules of State responsibility are of a secondary nature

- Primary rules (found in treaty law or customary int'l law) determine the substantive legal obligations (e.g. non-use of force).
- Rules of State responsibility determine the legal consequences arising from a breach of those obligations.

General regime of <u>state</u> responsibility

- Concerns states only
- Not a specialised regime

LAW ON STATE RESPONSIBILITY

- Studied and developed by the International Law Commission ('ILC') over more than 40 years.
- Now codified and developed in the ILC's Articles on Responsibility of States for Internationally Wrongful Acts, adopted on 10 August 2001 ('ARSIWA').
- The 2001 ILC Articles provide the practical and conceptual structure within which issues of State responsibility can be examined.
- Not binding **but** many articles appear to codify CIL.

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INTERNATIONALLY WRONGFUL CONDUCT

Internationally wrongful act

"every **internationally wrongful act** of a State entails its international responsibility" (Art. 1 ARSIWA).

Two elements of an internationally wrongful act

An internationally wrongful act exists when conduct consisting of an act or omission is attributable to a State and constitutes a breach of an international obligation owed by that State. (Art. 2 ARSIWA).

Two elements of an internationally wrongful act

1- Conduct in breach of an international obligation

- Synonym with violation.
- Concerns a primary rule of international law irrespective of the source (Art. 12 ARSIWA).
- State needs to be under obligation at the time of the breach (Art. 13-14 ARSIWA) *Legal Consequences of the Separation of the Chagos Archipelago* [2019] ICJ, Advisory Opinion).
- Composite acts (Art. 15, ARSIWA)
- Act or omission (Art. 2 ARSIWA, Teheran case, ICJ, Corfu Channel, ICJ).

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Attribution

Articles 4-11, Chapter III of ARSIWA (deal with attribution)

In principle, States are only responsible for their own actions, not for those of private individuals. However, under certain circumstances, a State can be found to be in breach of its international obligations in relation to actions of private individuals.

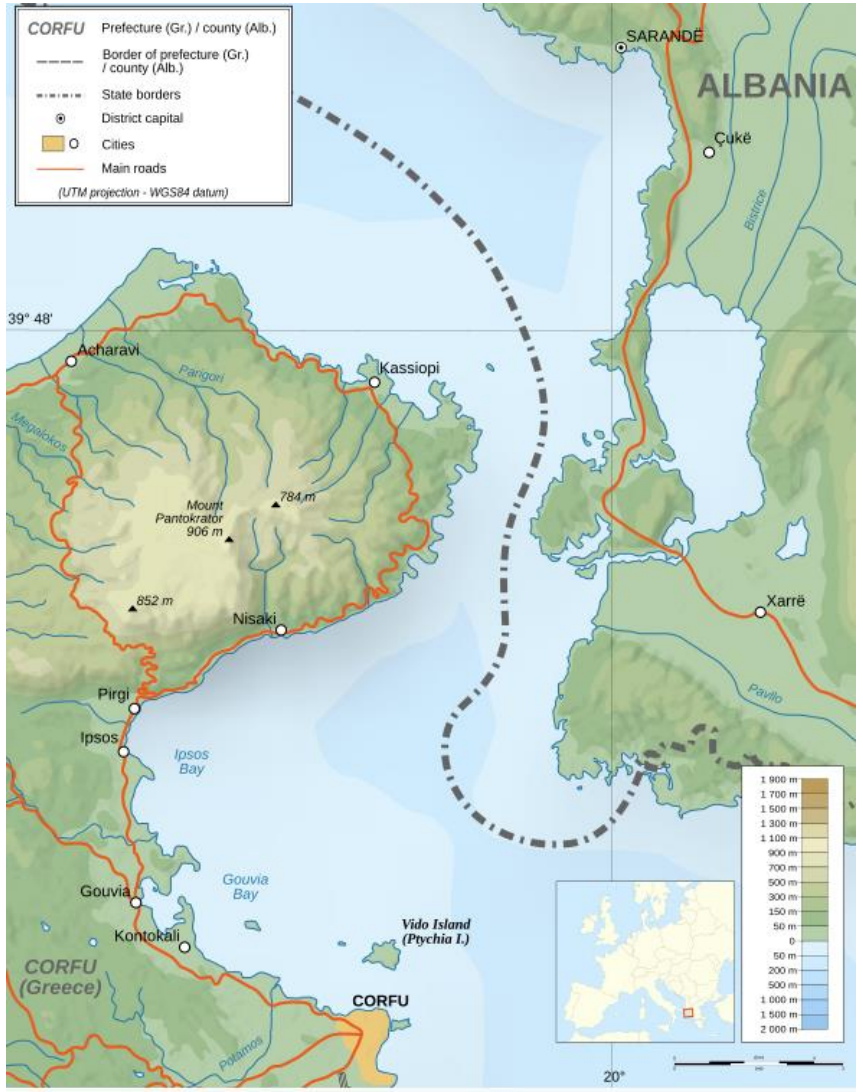
> e.g., Corfu Channel Case (UK v Albania) [1949] ICJ para 22: a State may not 'allow knowingly its territory to be used for acts contrary to the rights of other States'

International Law

CORFU CHANNEL (UNITED KINGDOM OF GREAT BRITAIN AND NORTHERN IRELAND V. ALBANIA), ICJ, 1949.

- ✓ In October 1946, two British cruisers and two destroyers entered the North Corfu Strait and traveled into Albanian waters.
- ✓ The passage was regarded as safe: it had been swept in 1944 and check-swept in 1945.
- ✓ Two ships struck a mine and were gravely damaged. Forty-five British officers and sailors lost their lives, and forty-two others were wounded.
- ✓ Who laid the mines in Albanian territorial waters remained a matter for conjecture.
- ✓ Evidence of the Albanian Government's attitude and the fact that the laying of mines would have been visible from the Albanian Coast➔ Court to conclude that Albania knew about the minefield.

"The obligations incumbent upon the Albanian authorities consisted in notifying, for the benefit of shipping in general, the existence of a minefield in Albanian territorial waters and in warning the approaching British warships of the imminent danger to which the minefield exposed them. … every State [has an] obligation not to allow knowingly its territory to be used for acts contrary to the rights of other States." (p.22)



ATTRIBUTION

Acts by an organ of the state

Article 4, ARSIWA

1. The conduct of any State organ shall be considered an act of that State under international law, whether the organ exercises **legislative, executive, judicial** or **any other functions**, whatever position it holds in the organization of the State, and whatever its character as an organ of the central Government or of a territorial unit of the State.

2. An organ includes any person or entity which has that status in accordance with the internal law of the State.

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ATTRIBUTION

Acts by an organ of the state

Application of the Genocide Convention (Bosnia) ICJ *2007*

"… according to the Court's jurisprudence, persons, groups of persons or entities may, for purposes of international responsibility, be equated with State organs even if that status does not follow from internal law, provided that in fact the persons, groups or entities act in "complete dependence" on the State, of which they are ultimately merely the instrument. In such a case, it is appropriate to look beyond legal status alone, in order to grasp the reality of the relationship between the person taking action, and the State to which he is so closely attached as to appear to be nothing more than its agent: any other solution would allow States to escape their international responsibility by choosing to act through persons or entities whose supposed independence would be purely fictitious.

… However, so to equate persons or entities with State organs when they do not have that status under internal law must be exceptional…"

(paras 392-393)

ATTRIBUTION

Acts by entities exercising governmental authority

Article 5, ARSIWA

'… a person or entity which is not an organ of the State under article 4 but which is

(i) empowered by the law of that State to exercise elements of the governmental authority shall be considered an act of the State under international law…

(ii) provided the person or entity is acting in that capacity in the particular instance.

- This provision applies to situations where State functions have been delegated to private entities: e.g., privatisation of military and police functions.
- Delegation of state powers to private parties means that their actions would still qualify as 'exercise of governmental authority'.

ATTRIBUTION

Acts by organs placed at the disposal of a state by another state

Article 6, ARSIWA

"The conduct of an organ placed at the disposal of a State by another State shall be **considered an act of the former State** under international law if the organ is acting in the exercise of elements of the governmental authority of the State at whose disposal it is placed." Art. 6 ARSIWA).

E.g., Sending a health service section to another state to fight a disease outbreak.

ATTRIBUTION

For acts *ultra vires*

"The conduct of an organ of a State or of a person or entity empowered to exercise elements of the governmental authority **shall be considered an act of the State** under international law if the organ, person or entity acts in that capacity, **even if it exceeds its authority or contravenes instructions**.." (Art. 7 ARSIWA).

***Velásquez Rodríguez v Honduras*, ACtHR, 1988.**

> "independent of whether the organ or official has contravened provisions of internal law or overstepped the limits of his authority: under international law a State is responsible for the acts of its agents undertaken in their official capacity and for their omissions, even when those agents act outside the sphere of their authority or violate internal law."

Velásquez Rodríguez v Honduras, Judgment, IACtHR Ser C No 4 (29 July 1988), (1989) 28 ILM 378, para 170

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ATTRIBUTION

Acts by private individuals

Article 8, ARSIWA:

"The conduct of a person or group of persons shall be considered an act of a State under international law if the person or group of persons is in fact acting on the instructions of, or under the direction or control of, that State in carrying out the conduct.

Two situations

- ✓ Under the instructions➔ with respect to each operation (Nicaragua and Application of the Genocide Convention cases, ICJ)
- ✓ Under the direction or control➔ effective control over each operation

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STATE RESPONSIBILITY - ATTRIBUTION

Effective control test

Military and Paramilitary Activities in and against Nicaragua **(Nicaragua v United States), Merits, ICJ Reports 1986**

> The Court has taken the view (paragraph 110 above) that United States participation, even if preponderant or decisive, in the financing, organizing, training, supplying and equipping of the contras, the selection of its military or paramilitary targets, and the planning of the whole of its operation, is still insufficient in itself, on the basis of the evidence in the possession of the Court, for the purpose of attributing to the United States the acts committed by the contras in the course of their military or paramilitary operations in Nicaragua. … For this conduct to give rise to legal responsibility of the United States, it would in principle have to be proved that that State had effective control of the military or paramilitary operations in the course of which the alleged violations were committed. (Para, 115)

Overall control test

***The Prosecutor v. Duško Tadić* (Judgement), IT-94-1-A (15 July 1999) (ICTY Appeals Chamber)**

> The requirement of international law for the attribution to States of acts performed by private individuals is that the State exercises control over the individuals. The degree of control may, however, vary according to the factual circumstances of each case. The Appeals Chamber fails to see why in each and every circumstance international law should require a high threshold for the test of control. Rather, various situations may be distinguished. (Para, 117)

International Law

STATE RESPONSIBILITY - ATTRIBUTION

Effective control test

***Application of the Convention on the Prevention and Punishment of the Crime of Genocide, (Bosnia and Herzegovina v Serbia and Montenegro)* (Judgement) ICJ Reports 43 2007.**

> "It must next be noted that the 'overall control' test has the major drawback of broadening the scope of State responsibility well beyond the fundamental principle governing the law of international responsibility: a State is responsible only for its own conduct … a State's responsibility can be incurred for acts committed by persons or groups of persons [only if] … they are attributable to it under the rule of customary international law reflected in article 8 cited above (paragraph 398). This is so where an organ of the State gave the instructions or provided the direction pursuant to which the perpetrators of the wrongful act acted or where it exercised effective control over the action during which the wrong was committed. In this regard the 'overall control' test is unsuitable, for it stretches too far, almost to breaking point, the connection which must exist between the conduct of a State's organs and its international responsibility.

ATTRIBUTION

Mob violence, insurrections and civil war

Article 10, ARSIWA

" 1. The conduct of an insurrectional movement which becomes the new Government of a State shall be considered an act of that State under international law.

2. The conduct of a movement, insurrectional or other, which succeeds in establishing a new State in part of the territory of a pre-existing State or in a territory under its administration shall be considered an act of the new State under international law.

3. This article is without prejudice to the attribution to a State of any conduct, however related to that of the movement concerned, which is to be considered an act of that State by virtue of articles 4 to 9.

ATTRIBUTION

Endorsement of conduct

Article 11, ARSIWA

"Conduct which is not attributable to a State under the preceding articles shall nevertheless be considered an act of that State under international law if and to the extent that the State acknowledges and adopts the conduct in question as its own".

International Law

STATE RESPONSIBILITY - ATTRIBUTION

ATTRIBUTION

Acts by another state

- ✓ A State aids or assists another state in breaching an obligation owed by both of them. (Art. 16 ARSIWA)
- ✓ A State exercises direction or control over another state. (Art. 17 ARSIWA)
- ✓ A State coerces another state into breaching an obligation. (Art. 18 ARSIWA)

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State Responsibility (Part 2)



International Law

STATE RESPONSIBILITY

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Circumstances precluding wrongfulness (Arts 20-25)

- ✓ Consent
- ✓ Self-defence
- ✓ Lawful counter-measures
- ✓ Force majeure
- ✓ Distress
- ✓ Necessity

Consequences of an internationally wrongful act

- ✓ Cessation of wrongful conduct
- ✓ Duty to make reparation

Who can invoke a State's international responsibility?

- ✓ The injured State
- ✓ Non-injured States

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Circumstances precluding wrongfulness (Arts 20-25)

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CONSENT

Art 20, ARSIWA

> Valid consent by a State to the commission of a given act by another State precludes the wrongfulness of that act in relation to the former State to the extent that the act remains within the limits of that consent.

Self-Defence

Art 21, ARSIWA

"The wrongfulness of an act of a State is precluded if the act constitutes a lawful measure of self defence taken in conformity with the Charter of the United Nations [i.e. Art 51, UN Charter]."

Art 51, UN Charter

"Nothing in the present Charter shall impair the inherent right of individual or collective self-defence if an armed attack occurs against a Member of the United Nations…"

Lawful countermeasures (Arts 22 & 49-59)

Article 22, ARSIWA

> The wrongfulness of an act of a State not in conformity with an international obligation towards another State is precluded if and to the extent that the act constitutes a countermeasure taken against the latter State in accordance with chapter II of part three.

➔ ***Gabcíkovo-Nagymaros Project (Hungary v Slovakia)* (Judgement) [1997]ICJ.**

International Law

STATE RESPONSIBILITY: CIRCUMSTANCES PRECLUDING WRONGFULNESS

LAWFUL COUNTERMEASURES (ARTS 22 & 49-59)

Art 49(1), ARSIWA

> An injured State may only take countermeasures against a State which is responsible for an internationally wrongful act in order to induce that State to comply with its obligations…

Other considerations (Art 50(1), ARSIWA)

- Must not breach jus cogens obligations (e.g., use of force, human rights) ➔ (Art 50, 53 ARSIWA)
- Proportional – this is to be determined on a case-by-case basis ➔ (Art 51, ARSIWA) & Gabcíkovo-Nagymaros Project, ICJ
- Procedural requirements (e.g., first ask to negotiate, notify, give chance to cease wrongful behaviour, terminate countermeasures once the wrongful act has ceased) ➔ (Art 52, 53 ARSIWA)

Force majeure

Art 23(1), ARSIWA

> "The wrongfulness of an act of a State not in conformity with an international obligation of that State is precluded if the act is due to force majeure, that is the **occurrence of an irresistible force or of an unforeseen event, beyond the control of the State, making it materially impossible in the circumstances to perform the obligation**."

- ➔ Involuntary, unintentional conduct, beyond the control of the State
- ➔ No one should be legally required to perform the impossible
- ➔ See *Rainbow Warrior Case*, France-New Zealand Arbitration Tribunal, 82 I.L.R. 500 (1990) : "absolute and material impossibility"

Distress

Art 24, ARSIWA

"1. The wrongfulness of an act of a State not in conformity with an international obligation of that State is precluded if the author of the act in question has no other reasonable way, in a situation of distress, of **saving the author's life or the lives of other persons entrusted to the author's care**.

2. Paragraph 1 does not apply if:

- ✓ the situation of distress is due, either alone or in combination with other factors, to the conduct of the State invoking it; or
- ✓ the act in question is likely to create a comparable or greater peril."

Necessity

Art 25, ARSIWA

> "Necessity may not be invoked by a State as a ground for precluding the wrongfulness of an act not in conformity with an international obligation of that State unless the act:
>
> (a) is the only way for the State to safeguard an essential interest against a grave and imminent peril; and
> (b) does not seriously impair an essential interest of the State or States towards which the obligation exists, or of the international community as a whole."

Relates to rare and truly exceptional situations: only way to avert a 'grave and imminent peril' is to refrain from performing another legal obligation which is considered to be of a lesser weight of urgency. (see Gabčíkovo-Nagymaros Project 1997 paras 49-55.)

Compliance with peremptory norms

Art 26, ARSIWA

> "Nothing in this chapter [on circumstances precluding wrongfulness] precludes the wrongfulness of any act of a State which is not in conformity with an obligation arising under a peremptory norm of general international law".

Obligation to cease unlawful conduct and not repeat it

Art. 30, ARSIWA Cessation and non-repetition

"The State responsible for the internationally wrongful act is under an obligation: (a) to cease that act, if it is continuing; (b) to offer appropriate assurances and guarantees of non-repetition, if circumstances so require."

➔ **See *Construction of a Wall* (ICJ Advisory Opinion): Israel 'must offer appropriate assurances and guarantees of non-repetition'**

Obligation to make full reparations for the injury caused by the unlawful act

Art. 31, ARSIWA Reparation

> "1. The responsible State is under an obligation to make full reparation for the injury caused by the internationally wrongful act.
>
> 2. Injury includes any damage, whether material or moral, caused by the internationally wrongful act of a State."

➔ ***Factory at Chorzow case*, 1928 PCIJ**
"the purpose of such reparation is to as far as possible, wipe all the consequences of the illegal act and re-establish the situation which would, in all probability, have existed if that act had not been committed…"

➔ **Three forms of reparation:** restitution (Art 35 ARSIWA), compensation (Art. 36 ARSIWA), and satisfaction.(Art. 37 ARSIWA)

Construction of the Wall Advisory Opinion

Concerned Israel's construction of a wall in the Occupied Palestinian Territory

- ICJ found construction of the wall to be an internationally unlawful act
- Israel was obliged to stop construction of the wall, dismantle portions already built, and provide reparations for any damage caused

Chagos Advisory Opinion

Concerned UK's detachment of the Chagos islands from Mauritius and continued administration

- ICJ found UK's actions to be an international unlawful act
- UK was obliged to end its administration of Chagos Archipelago and return them to Mauritius as rapidly as possible

International Law

STATE RESPONSIBILITY: WHO MAY INVOKE A STATE'S INTERNATIONAL RESPONSIBILITY?

The injured State(s)

The rule is that only the State(s) whose individual rights have been violated are entitled to invoke international responsibility (demand cessation…reparation, etc.)

Non-injured States

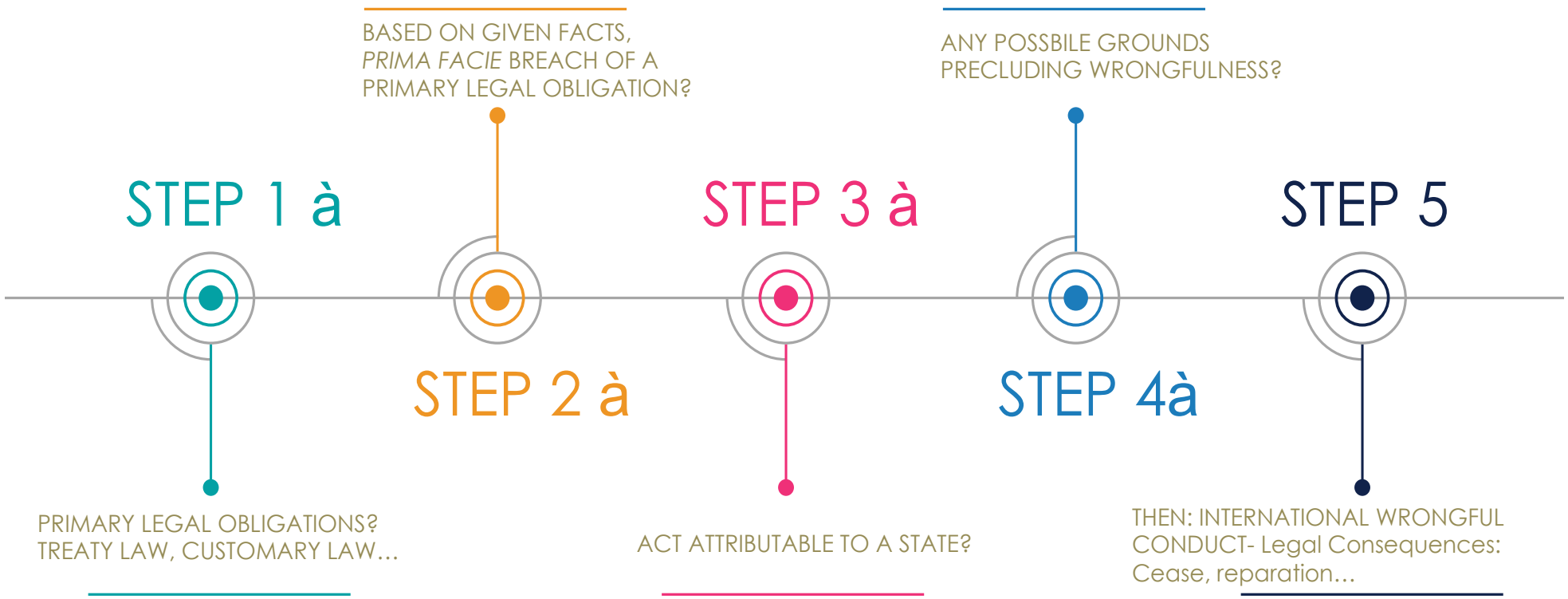
If an *erga omnes* norm has been violated (e.g.. non-use of force principle, prohibition of aggression and genocide, and … breaches of international environmental law.)

Art. 48, ARSIWA

"Any State other than an injured State is entitled to invoke the responsibility of another State in accordance with paragraph 2 if: (a) the obligation breached is owed to a group of States including that State, and is established for the protection of a collective interest of the group; or (b) the obligation breached is owed to the international community as a whole."

➔ *Barcelona Traction Case (Belgium v Spain)* ICJ (1970): obligations *erga omnes*.

STATE RESPONSIBILITY: OVERVIEW



cc: Constantinos Yiallourides

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STATE RESPONSIBILITY

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Circumstances precluding wrongfulness (Arts 20-25)

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End